

An Act

ENROLLED SENATE
BILL NO. 1732

By: Daniels of the Senate

and

Strom of the House

An Act relating to professional licensing fees; amending 59 O.S. 2021, Section 858-625, which relates to fees for the Home Inspection Licensing Act; increasing certain fees; amending 59 O.S. 2021, Section 1000.5, which relates to the Construction Industries Board Act; establishing certain fees for license or permit issuance or renewal; amending 59 O.S. 2021, Section 1686.1, which relates to poultry house contractor license; conforming language; updating statutory references; updating statutory language; and providing an effective date.

SUBJECT: Professional licensing

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 858-625, is amended to read as follows:

Section 858-625. Fees for the Home Inspection Licensing Act shall not exceed the following:

Approval fees for schools, instructors, and home inspection organizations	\$100.00
Approval fees for educational course content	\$50.00
Application for license	\$30.00

Licensure for reciprocity	\$50.00 <u>\$80.00</u>
Examination fee	\$200.00
License fee	\$250.00 <u>\$400.00</u>
License renewal	\$150.00 <u>\$240.00</u>
License reactivation	\$50.00

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1000.5, is amended to read as follows:

Section 1000.5. A. The Construction Industries Board may establish a system of fees by rule to be charged for the application for licenses, ~~for the issuance and renewal of licenses and permits,~~ for administration of examinations, for formal project reviews, and dishonored checks under the Board's authority. This provision is subject to the following limitations:

1. No schedule of fees may be established or amended by the Board except during such times as the Legislature is in session; provided, the Board may establish or amend a schedule of fees at a time when the Legislature is not in session if the fees or schedule of fees has been specifically authorized by the Legislature pursuant to paragraph 2 of this subsection. The Board must follow the procedures required by Article I of the Administrative Procedures Act for adoption of rules in establishing or amending any such schedule of fees; ~~and~~

2. The Board shall charge fees ~~only within the following ranges as follows,~~ except as may be otherwise specified in this section or another provision of law-:

For application for license	not to exceed \$30.00
For administration of license examinations:	not to exceed \$200.00
For license or permit issuance:	not to exceed \$300.00
For license or permit renewal:	not to exceed \$200.00

For formal project review for
code conformance: ~~_____ not to exceed~~ \$200.00

For permit issuance for the use
of alternative materials or
methods: ~~_____ not to exceed~~ \$50.00

For dishonored checks: ~~_____ not to exceed~~ an amount
pursuant to the
provisions of Section
1121 of Title 47 of the
Oklahoma Statutes.

3. The Board shall charge fees for a plumbing, electrical, or mechanical license, registration, or endorsement issuance or renewal as follows, except as may otherwise be specified in this section or another provision of law:

<u>Initial contractor license</u>	<u>\$480.00</u>
<u>Renewal contractor license</u>	<u>\$320.00</u>
<u>Renewal contractor license with late fee</u>	<u>\$420.00</u>
<u>Initial journeyman license</u>	<u>\$80.00</u>
<u>Renewal journeyman license</u>	<u>\$120.00</u>
<u>Renewal journeyman license with late fee</u>	<u>\$220.00</u>
<u>Apprentice registration</u>	<u>\$32.00</u>
<u>Initial alarm endorsement</u>	<u>\$120.00</u>
<u>Renewal alarm endorsement</u>	<u>\$40.00</u>

4. The Board shall charge fees for home inspection industry license issuance or renewal as follows, except as may otherwise be specified in this section or another provision of law:

<u>Licensure for reciprocity</u>	<u>\$80.00</u>
<u>License fee</u>	<u>\$400.00</u>
<u>Renewal fee</u>	<u>\$240.00</u>

5. The Board shall charge a fee of Fifty-five Dollars (\$55.00) for the initial issuance or renewal of a license for building, electrical, mechanical, plumbing, or energy code inspectors; and

6. The Board shall charge a fee of Four Hundred Eighty Dollars (\$480.00) for an initial poultry house contractor license and Three Hundred Twenty Dollars (\$320.00) for a renewal poultry house contractor license.

B. The Board shall base its schedule of fees upon the reasonable costs of review and inspection services rendered in connection with each license, permit, or review, but such fees shall be within the ranges specified in paragraph 2 of subsection A of this section, except as otherwise specified in this section or as provided by law. The Board shall establish a system of training for all personnel who render review and inspection services in order to assure uniform ~~statewide~~ application of rules. The Board shall include the reasonable costs associated with such training in the fees provided for in this section.

C. The Board may exempt by rule any class of licensee or permittee from the requirements of the fee schedule if the Board determines that the creation of such a schedule for any such class would create an unreasonable economic hardship.

D. All fee changes adopted by the Board shall be reviewed and approved as provided in subsection ~~F~~ E of Section 308 of Title 75 of the Oklahoma Statutes.

E. Unless otherwise provided, licenses and permits issued by the Construction Industries Board shall be for a one-year period.

F. When, at the time of application or renewal of any license or registration, payment is made by check for fees and the check is not paid by the bank on which drawn for any reason, such license or

registration issued at that time shall be invalid. In all such cases, the license or registration shall be subject to the license or registration fees and penalties provided in ~~subsection A of this section or another provision of law~~ and treated as though no attempt to apply for or renew a license or registration had been made. The Board may charge and collect from the licensee, registrant, or other obligor of fees or fines, a fee for each return by a bank or other depository institution of a dishonored check, negotiable order of withdrawal, or share draft issued by the licensee, registrant, or other obligor.

SECTION 3. AMENDATORY 59 O.S. 2021, Section 1686.1, is amended to read as follows:

Section 1686.1. A. The Construction Industries Board is hereby authorized to establish a license category for contractors who solely perform poultry house premise wiring for environmentally controlled poultry house systems, and the insured poultry house wiring to connect the premise wiring, and who do not perform any wiring for a structure or electrical facility that is not directly involved in the operation of the environmentally controlled poultry house wiring system. In addition to other statutory authority, the Construction Industries Board shall have the power to exercise all incidental powers and duties necessary to effectuate the provisions of the poultry house contractor license, conduct investigations involving compliance with the licensing requirements, and enforce the licensing provisions of this section. However, the Construction Industries Board is not authorized to conduct an electrical code inspection of an environmentally controlled poultry house premise wiring system for purposes of compliance with electrical code installation standards established for the Electrical License Act or to issue administrative citations or fines concerning electrical code installation standards at an environmentally controlled poultry house.

1. With a valid poultry house contractor license, no further registration or license is required under ~~this act~~ the Electrical License Act in order to solely perform poultry house wiring for environmentally controlled poultry houses. This license allows contracting only for wiring of environmentally controlled poultry house systems and is not intended to disallow or exclude unlimited electrical contractors from performing poultry house wiring work

under an unlimited electrical contractor license without a poultry house contractor license.

2. Experience under the poultry house contractor license shall not be considered qualifying electrical experience for purposes of experience requirements for application of any other electrical license category pursuant to the Electrical License Act.

3. The Board may rely upon proof of a valid construction license or registration issued by another state to expedite the processing of the required information for a poultry house contractor license~~+~~, provided~~+~~ the insurance and workers' compensation requirements demonstrate compliance with the required coverage for work performed in this state.

4. All licenses shall be nontransferable, and it shall be a misdemeanor for any business entity holding a poultry house contractor license under the provisions of the Electrical License Act to loan or allow the use of such license by any other person, firm, or corporation, except as specifically provided in the Electrical License Act or to engage in poultry house contractor license work without a valid license pursuant to ~~this act~~ the Electrical License Act.

B. A nonrefundable fee in the amount of ~~Three Hundred Dollars (\$300.00)~~ set forth in Section 1000.5 of this title for the annual poultry house contractor license shall be paid at the time of license application to the Construction Industries Board. The annual license shall expire one (1) year from the date of issuance. A poultry house contractor license shall be issued for one (1) year, at which time it may be renewed upon meeting the requirements of this section, making application, and paying the nonrefundable license renewal fee in the amount of ~~Two Hundred Dollars (\$200.00)~~ set forth in Section 1000.5 of this title.

C. The Construction Industries Board shall, upon proper application and payment of fee, license and issue a certificate of poultry house contractor license to any person who furnishes satisfactory proof to the Board that the applicant:

1. Is eighteen (18) years of age or over;

2. Is the party performing, overseeing, or otherwise responsible for the poultry house contractor work performed and who meets all requirements of ~~this act~~ the Electrical License Act and resulting rules required to obtain such license; and

3. Has provided all necessary information and documentation required under ~~this act~~ the Electrical License Act, the resulting rules, and as requested by the Board.

D. The Construction Industries Board shall require the following for a poultry house contractor license:

1. The applicant's full legal name, physical address, mailing address, business name, telephone number of business and applicant, address and place of incorporation, if any, and address of legal registered service agent in this state;

2. Proof of lawful presence in the United States for the applicant and all employees and laborers working under the applicant in this state who will be involved in wiring ~~a poultry house~~ for environmentally controlled poultry houses;

3. A listing of the names and social security numbers of all employees and laborers working in this state who will be involved in wiring ~~a poultry house~~ for environmentally controlled poultry houses. The social security number information shall remain with the Board as confidential and privileged except for necessary disclosures to state agencies to verify compliance with requirements of ~~this act~~ the Electrical License Act or upon request by law enforcement;

4. The business entity's federal tax ID number or the employer's or owner's social security number. ~~The and the~~ and the employer's account number assigned by the Oklahoma Employment Security Commission. The social security number information shall remain with the Board as confidential and privileged except for necessary disclosures to state agencies to verify compliance with requirements of ~~this act~~ the Electrical License Act or upon request by law enforcement;

5. A letter of good standing from the Secretary of State in the state the contractor is domiciled and other documentation of valid

license or registration from the domicile state licensing or registration board, commission, or agency;

6. Disclosure of resident or nonresident contractor status, and state of residence and domicile;

7. A copy of the applicant's certificate of liability insurance ~~shall to be~~ filed with the application and ~~shall be in an amount~~ not less than Five Hundred Thousand Dollars (\$500,000.00). Any insurance company issuing a liability policy to an applicant pursuant to the provisions of the poultry house contractor license under ~~this act~~ the Electrical License Act shall be required to notify the Construction Industries Board in the event such liability policy is ~~cancelled~~ canceled for any reason or lapses for nonpayment of premiums. All licenses granted under ~~this act~~ the Electrical License Act shall be suspended on the date of the policy cancellation. The Board must receive proof of insurance prior to reinstating the license;

8. ~~The applicant shall submit proof~~ Proof of satisfactory workers' compensation coverage under the Administrative Workers' Compensation Act or an affidavit of exemption or self-insurance as authorized pursuant to the Administrative Workers' Compensation Act;

9. Disclosure of any felony convictions; and

10. ~~Applicants for poultry house contractor license shall provide such additional~~ Additional documents, statements, or other information as may be deemed appropriate or necessary and required by the Board.

E. The Construction Industries Board shall refuse to license any person if the Board determines:

1. The application contains false, misleading, or incomplete information;

2. The applicant or any member of the business entity fails or refuses to provide any information requested by the Board;

3. The applicant fails or refuses to pay the required fees;

4. The applicant or owner or officer or managing member of the legal entity is ineligible for license due to a suspended or revoked license or registration in this state;

5. The nonresident applicant has a revoked or suspended registration or license required by law for contractors in another state; or

6. The applicant or legal entity has failed or refuses to submit any taxes due in this state.

F. The Board shall suspend the poultry house contractor license when the licensee fails to:

1. Maintain liability insurance coverage;

2. Maintain satisfactory workers' compensation coverage under the Administrative Workers' Compensation Act or provide an affidavit of exemption or self-insurance as authorized pursuant to the Administrative Workers' Compensation Act;

3. Comply with provisions of the Electrical License Act or any rule or order issued pursuant thereto;

4. Perform normal business obligations without justifiable cause;

5. Notify the Board of a change in name, address, legal business entity, legal service agent, adverse finding by a licensing entity in this state or another state or adjudication by a court of competent jurisdiction for any act or omission that is a violation of the Electrical License Act;

6. Maintain a registration or license as required by law in another state while licensed in this state as a nonresident contractor; or

7. File and pay all taxes of the contractor or legal entity when due in this state.

SECTION 4. This act shall become effective July 1, 2028.

Passed the Senate the 3rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____